

HOUSE No. 4530

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 16, 2025.

The committee on Ways and Means, to whom was referred the message from Her Excellency the Governor submitting requests for making appropriations for fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 4003) reports, in part, recommending that the accompanying bill (House, No. 4530) ought to pass [Total Appropriation: \$157,000,000.00].

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making appropriations for fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects.

Whereas, The deferred operation of this act would tend to defeat its purposes, which are to make supplemental appropriations for fiscal year 2025 and to make certain changes in law, each of which is immediately necessary to carry out those appropriations or to accomplish other important public purposes, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for certain unanticipated obligations of the commonwealth, to
2 provide for an alteration of purpose for current appropriations and to meet certain requirements
3 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
4 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
5 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
6 section, for the several purposes and subject to the conditions specified in this section, and
7 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
8 2025. Except as otherwise stated, these sums shall be made available through the fiscal year
9 ending June 30, 2026.

10 SECTION 2A.

EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

Office of the Secretary

4000-1202 For the distribution of funds for fiscally strained hospitals; provided, that notwithstanding any general or special law to the contrary, the executive office of health and human services shall direct payments to eligible acute care hospitals in the form of enhanced Medicaid payments, supplemental payments or other appropriate mechanisms; provided further, that not less than \$20,000,000 shall be distributed to eligible private acute care hospitals licensed under section 51 of chapter 111 of the General Laws that have: (i) a public payer mix greater than 68 per cent, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; (ii) a statewide relative price less than 0.9, as calculated by the center for health information and analysis according to calendar year 2022 data published in its Relative Price and Provider Price Variation Databook; and (iii) a negative operating margin, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; provided further, that not less than \$41,000,000 shall be distributed to eligible private acute care hospitals licensed under said section 51 of said chapter 111 that: (a) have a public payer mix greater than 63 per cent, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; (b) have a statewide relative price less than 1.0, as calculated by the center for health information and analysis according to calendar year 2022 data published in its Relative Price and Provider Price Variation Databook; (c) have a negative operating margin, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its

Massachusetts Acute Hospital Profiles Databook; and (d) are not otherwise eligible for funding under this item pursuant to prior provisos; provided further, that not less than \$22,000,000 shall be distributed to eligible private acute care hospitals licensed under said section 51 of said chapter 111 that: (1) have a public payer mix greater than 63 per cent, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; (2) have a statewide relative price less than 1.0, as calculated by the center for health information and analysis according to calendar year 2022 data published in its Relative Price and Provider Price Variation Databook; and (3) are not otherwise eligible for funding pursuant to the prior provisos; provided further, that not less than \$17,000,000 shall be distributed to eligible private acute care hospitals licensed under said section 51 of said chapter 111 that: (A) have a public payer mix greater than 63 per cent, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; and (B) are not otherwise eligible for funding under this item pursuant to prior provisos; provided further, that the total payment amount to each eligible private acute care hospital under this item shall be calculated based on the total amount available for the group of eligible private acute care hospitals multiplied by a fraction, the numerator of which is the private acute care hospital's Medicaid gross patient service revenue, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook, and the denominator of which is the total amount of Medicaid gross patient service revenue for the group of private acute care hospitals eligible for said amount available, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; provided further, that not

57 less than \$16,500,000 shall be expended to the non-state, government public hospital system
58 established under chapter 147 of the acts of 1996; provided further, that not less than
59 \$10,000,000 shall be expended to the community-high public payer hospital in Middlesex county
60 with an operating margin less than negative 8 per cent, as calculated by the center for health
61 information and analysis according to hospital fiscal year 2023 data published in its
62 Massachusetts Acute Hospital Profiles Databook; provided further, that said payments shall not
63 be used in subsequent years by the executive office to calculate any other payment to eligible
64 acute care hospitals; provided further, that said payments shall not offset existing Medicaid or
65 other state payments that an eligible acute care hospital may be qualified to receive; provided
66 further, that the secretary of health and human services may require as a condition of receiving
67 payment under this item any reasonable condition of payment that the secretary determines
68 necessary to ensure the availability, to the extent possible, of federal financial participation for
69 the payments and the executive office may incur expenses and the comptroller may certify
70 amounts for payment in anticipation of expected receipt of federal financial participation for the
71 payments; provided further, that the executive office may promulgate regulations as necessary to
72 implement this item; provided further, that not later than March 2, 2026, the executive office
73 shall submit a report to the joint committee on health care financing and the house and senate
74 committees on ways and means detailing: (I) the schedule of payments to hospitals under this
75 item delineated by acute care hospital, hospital system and payment amount; and (II) each
76 hospital's intended use of funds provided under this item; and provided further, that eligible
77 acute care hospitals shall provide the executive office with information necessary for the
78 report.....\$122,000,000

4000-1998 For the distribution of funds for fiscally strained community health centers; provided, that for the purposes of this item, “eligible community health center” shall be defined as any entity receiving funding pursuant to 42 USC 254b that demonstrates significant financial need based on criteria established by the secretary of health and human services in consultation with The Massachusetts League of Community Health Centers, Inc.; provided further, that not less than \$2,500,000 shall be expended to The Massachusetts League of Community Health Centers, Inc. for enhanced technical assistance, including, but not limited to, the facilitation of shared service agreements; provided further, that notwithstanding any general or special law to the contrary, the executive office of health and human services shall direct payments to eligible community health centers in the form of enhanced Medicaid payments, supplemental payments or other appropriate mechanisms; provided further, that said payments shall not be used in subsequent years by the executive office to calculate any other payment to eligible community health centers; provided further, that such payments shall not offset existing Medicaid or other state payments that an eligible community health center may be qualified to receive; provided further, that the secretary may require as a condition of receiving payment any such reasonable condition of payment that the secretary determines necessary to ensure the availability, to the extent possible, of federal financial participation for the payments and the executive office may incur expenses and the comptroller may certify amounts for payment in anticipation of expected receipt of federal financial participation for the payments; and provided further, that the executive office may promulgate regulations as necessary to implement this item.....\$35,000,000

SECTION 3. Notwithstanding any general or special law to the contrary, the comptroller, at the direction of the secretary of administration and finance, shall transfer \$77,000,000 from

102 the Commonwealth Care Trust Fund established in section 2000 of chapter 29 of the General
103 Laws to the Health Safety Net Trust Fund established in section 66 of chapter 118E of the
104 General Laws.